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Date: 4/5/21

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.12.030(A), Licenses and permits–Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, is hereby amended as set out in this ordinance.

5.12.030 Licenses and permits–Types.

A. The city is authorized, pursuant to Wyo. Stat. Sections 12-1-101, et seq., to issue the following types of alcohol, microbrewery, winery, satellite, special event and malt beverage licenses and permits:

5. Malt Beverage Permit. The city clerk, with approval by the chief of police, may authorize issuance of a temporary permit to any responsible person or organization allowing malt beverages sales only at a picnic, bazaar, fair, ~~rodeo~~, special holiday or similar public gathering.

16. ~~Special Malt Beverage Permit for Events at Rodeo Arenas. Pursuant to Wyo. Stat. Section 12-4-507, the city clerk shall issue a special malt beverage permit for the sale of malt beverages upon submission of a reasonable plan only at events conducted on the grounds of an indoor or outdoor rodeo with a total seating capacity of over seven thousand five hundred (7,500).~~

Section 2. That the remainder of Section 5.12.030(A), specifically paragraph 16, is renumbered as paragraph 17.

5.12.050 Application–Fees–Procedures for issuance.

A. Pursuant to the provisions of Wyoming Statutes Sections 12-1-101, et seq., and this chapter, any person desiring a license or permit to sell, dispense, consume, or pertaining to alcoholic liquor and malt beverages within the city, shall file an application with the city clerk, including supporting documentation as required by the city clerk and payment of applicable fees as follows:

Type	Fee
Retail liquor license	\$1,500.00
Limited retail liquor license	\$625.00
Resort liquor license	\$1,500.00
Restaurant liquor license	\$1,050.00
Bar and grill liquor license	\$10,500.00 (initial/new) \$1,500.00 (renewal)
Transfer of ownership/location	\$100.00*
Catering permit	\$50.00
Consumption permit	\$10.00
Malt beverage permit	\$50.00**

Malt beverage permit with open container	\$50.00**
Manufacturer's off-premises permit	\$50.00
Microbrewery permit	\$500.00***
Satellite winery permit	\$100.00
Satellite manufacturer's permit	\$100.00
Special event permit (under 21 years of age attendees; retail liquor licensee only)	\$10.00
Special malt beverage permit (annual)	\$1,500.00
Special malt beverage permit for events at rodeo arenas	\$100.00 per day of event
Winery permit	\$500.00***

D. The chief of police is authorized to assess a fee payable by licensees and permittees in conjunction with extra law enforcement resources as required by the chief in conjunction with events or activities in which the chief determines extra law enforcement presence is needed to monitor and enforce the provisions of this chapter or to provide for the health, safety and welfare of the public. The chief is authorized to establish and revise the fee schedule on file in the office of the chief of police.

1. Exception. This section does not apply to special malt beverage permits for events at rodeo arenas. However, the city and permittee may engage in negotiations relating to recouping costs included by the licensing authority related to the permitted event.

Section 3. That sections currently existing in Chapter 5.12 not set out within this ordinance remain unchanged.

Section 4. That this ordinance shall become effective upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

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